Harris County District Court

Cause No. 2024-CV-0017

Randall Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 11, 2024
Plaintiff's counsel:	Daniel Stein, Dunn & Acosta LLP

PARTIES

Plaintiff Randall Duncan is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. The Defendant is an automobile insurance company authorized to write motor vehicle policies in the State of Texas, which issued a policy of insurance that provided coverage to the Plaintiff at the time of the loss. Defendant may be served through its registered agent in accordance with the Texas Rules of Civil Procedure.

FACTS

On June 28, 2023, Plaintiff was lawfully operating his vehicle through a signalized intersection in Sugar Land when another motor vehicle entered the intersection and struck the side of Plaintiff's car. The impact occurred with force sufficeint to push Plaintiff's vehicle across the lane and deploy airbags. Plaintiff reported the collision to Defendant promptly and submitted the information needed to evaluate his claim under the coverage in force. Defendant has not paid the benefits owed under the policy in the amount Plaintiff is entitled to recover.

NEGLIGENCE

Defendant, through its insured or the responsible driver covered under the policy, failed to keep a proper lookout, failed to yield the right of way, and operated its vehicle at a speed and in a manner that a reasonably prudent driver would not have used under the same circumstances. Defendant further breached its contractual and statutory duties to investigate the claim in good faith, to affirm or deny coverage within a reasonable time, and to pay covered amounts once liability became reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff suffered a fracture of the wrist that required medical evaluation, immobilization, and ongoing treatment. Plaintiff has incurred medical expenses, lost wages, and loss of use of his hand, and he continues to experience pain and reduced function. Plaintiff seeks recovery of actual damages, pre-judgment and post-judgment interest, statutory damages available under the Texas Insurance Code, and court costs. Plaintiff therefore requests judgment against Defendant in the amount of $126,000.00.